EX TEMPORE

THE SHERIFF OF ZIMBABWE
versus
ZIMBABWE FREE RANGE POULTRY PRODUCERS TRUST
and
ZIMBABWE UNITED PASSENGER COMPANY LIMITED

HIGH COURT OF ZIMBABWE
DEME J
HARARE, 14 November and 17 November 2025.

Interpleader Proceedings

V Vengayi for the Claimant.
T Madzvamuse for the Judgment Creditor.
No appearance for the Applicant.

DEME J: The Applicant approached this court through interpleader proceedings mounted in terms of Rule 63. The judgment creditor obtained judgment in its favour in case number HCH195/25 on 13 February 2025 against Metbank Limited (hereinafter called "the Judgment Debtor"). The

Applicant, upon instruction of the Judgment Creditor, proceeded to attach the immovable property known as Lot 18 of Lot 9 of Spitzkop measuring 2,0168 hectares (hereinafter called "the property").

The claimant laid claim to the attached property. It is alleged that it purchased the property on 4 December 2023. It further alleged that it paid the transfer costs prior to the agreement on 2 October 2023. The Claimant further averred that several follow-ups were made to have the property transferred into its name without success. The Claimant submitted that there

are special circumstances that warrant this court's intervention to protect the Claimant. Reference was made to the case of *CBZ Bank LTD* v *Moyo and Anor*[1].

The matter was opposed by the Judgment Creditor, which raised two points *in* limine, which were eventually abandoned through oral submissions by Mr. Madzvamuse. The Judgment Creditor insisted that the Claimant is not the registered owner of the immovable property. According to the Judgment Creditor, the property is still registered in the name of the Judgment Debtor.

The Judgment Creditor argued that the agreement of sale referred to only creates personal rights which cannot be enforced against the whole world. Reference was made to the case of *The Sheriff of Zimbabwe* v *Quality Gas (Pvt) Ltd and Anor*[2].

The only issue that exercises my mind is whether the Claimant has established special circumstances warranting this court's intervention.

It is a well-established principle that ownership of immovable property is conveyed through a deed of transfer. Reference is made to the provisions of s 14 of the Deeds Registries Act [*Chapter 20:05*], which provides as follows:

> "Subject to this Act or any other law—
>
> (a) the ownership of land may be conveyed from one person to another only by means of deed of transfer executed or attested by a registrar;
>
> (b) other real rights in land may be conveyed from one person to another only by means of a deed of cession attested by a notary public and registered by a registrar.:
>
> Provided that attestation by a notary public shall not be necessary in respect of the conveyance of real rights acquired under a mortgage bond."

However, the Claimant, whose name is not yet registered as such in terms of Section 14 of the Deeds Registries Act, must plead special circumstances. Such special circumstances were

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[1] SC17/18.

[2] HH265/23.

explained in the case of *CBZ Bank Ltd v Moyo supra* where the Supreme Court remarked as follows:

> "Special circumstances exist where a purchaser has failed to have the property registered in his name, when he and the seller have demonstrated a clear intention to effect transfer and when there was no legal impediment to such transfer or the impediment does not justify the refusal to grant protection to the purchaser.
> The first respondent purchased and paid the full purchase price for the property in August 2010. It is common cause that the first respondent acted promptly to secure registration of title by paying the transfer fees and obtaining tax and rates clearance certificates. It is further common cause that the first respondent, in terms of the contract of sale was entitled to take vacant possession 3 months after the date of payment of the purchase price, that is, from November 2010. When the appellant served summons against Nompiliso Maposa, the first respondent was already residing at the property in question, where service of the summons was effected.
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> The transfer could not be registered because Lizhibowa Real Estate (Pvt) Ltd, a creditor of one of the sellers, had registered a caveat on the title deeds of the property. The caveat was registered after the first respondent was already in possession of the property and a day before the first respondent's transfer papers were filed in the Deeds Registry. The first respondent had done all that a purchaser is required to do to get transfer.
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> KOTZÉ J in the case of *Van Niekerk v Fortuin* 1913 CPD 457 at 458-459, commenting on the effect of the existence of special circumstances against execution of purchased property by the seller's judgment creditor, said:
> "It seems to me that the plaintiff being a judgment creditor, and the property being still registered in the name of the defendant, prima facie the plaintiff has the right to ask that the property shall be seized in execution, **unless the party interested can show that there are special circumstances why such an order should not be granted …""**

In *casu*, the Claimant's last step in acquiring the property was the signing of the agreement of sale. After the signature, no further concrete steps were executed by the Claimant to demonstrate its clear intention of having the property transferred apart from the WhatsApp messages, which were attached. In my opinion, such messages cannot constitute special circumstances. There are several steps that must occur if the transfer is to be realised. For this reason, there are no special circumstances pleaded by the Claimant, in my view.

Unlike in the case of *CBZ Bank Ltd v Moyo supra*, the Claimant did not plead that it obtained tax and rates clearance certificates in preparation for the transfer of the disputed property. Although the Claimant claims to have paid transfer fees in respect of the property, such payment was made before the conclusion of the agreement itself. It is not clear whether the

Claimant was paying for the transfer costs of the disputed property given that the Claimant also purchased other properties from the Judgment Debtor. Reference is made to page 66 of the record. Ms Vengayi admitted this fact during her oral submissions that the Claimant purchased other properties from the Judgment Debtor being referred to on page 66. In the absence of clear evidence that such fees were paid in respect of the disputed property, I am not persuaded that the payment of such fees must constitute special circumstances.

Further, the Judgment Creditor affirmed that the payment of the purported transfer costs was not recognised by the agreement of sale, which was subsequently concluded. Reference was made to Clause 6.2 of the agreement of sale, which provides that:

> "The transfer of rights, title and interest in the property from the seller to the purchaser shall be effected by Magwaliba and Kwirira Legal Practitioners of 20 Mayo Place, Eastlea, Harare upon payment of the full purchase price and conveyancing costs."

The Claimant argued that Clause 6.2 was erroneously drafted. I disagree with this allegation. This is more than an error. The agreement of sale ought to have captured the transfer costs allegedly paid in advance. The reason for the failure to capture such a payment remains a mystery. It is uncommon that the purchaser settles transfer costs before the purchase price, and even before the conclusion of the agreement. Common sense and logic demand that transfer costs can only become payable once the parties have finally agreed on the purchase price of the property. Without the agreed price, it is unclear how the parties to the purported agreement calculated the transfer costs.

Further, Ms Vengayi referred the court to pages 120 and 121 of the record. She argued that the receipts on those pages reflect that the Claimant paid the transfer costs in respect of the property in dispute. However, a perusal of the receipts suggests that such receipts were handwritten, which trivialises their probative value. Such receipts can be authored at any time to suit the circumstances. When the Claimant filed its interpleader affidavit, such receipts were not available. They were only made available in the opposing affidavit as an afterthought, in my view. For this reason, such receipts cannot help the Claimant to establish special circumstances.

The usual practice in the sale of immovable property requires the keeping of receipts by the purchaser as evidence of the purchase of the immovable property. The Claimant, for unknown reasons, failed to tender receipts for the payment of the purchase price. It only relies on the acknowledgement of receipt of payment of the purchase price generated by the Judgment Debtor, which harbours a special interest in this matter. In my view, this is a sign of collusion between the Judgment Debtor and the Claimant. This puts the whole agreement of sale into dispute. In my view, the sale of the property in dispute is nothing but a simulated transaction given the circumstances surrounding the agreement.

There are no tangible or palpable steps that were taken against the Judgment Debtor's legal practitioners for their alleged failure to have the property transferred into the Claimant's name despite the fact that the transaction was supposedly concluded in December 2023. The Claimant ought to have done more than what it did in order to enforce its rights. In the circumstances, the Claimant's claim is unmerited. The Claimant has failed to plead special circumstances justifying this court's intervention. Consequently, the claim must be dismissed with costs. It is accordingly ordered as follows:

A. The Claimant's claim to the immovable property known as Lot 18 of Lot 9 Spitzkop measuring 2,0168 hectares, which appears on the Notice of Attachment of immovable property dated 12 June 2025 which was placed under attachment in execution of the order in HCH195/25 be and is hereby dismissed.
B. The above-mentioned property attached in terms of Notice of Attachment of immovable property dated 12 June 2025, issued by the Applicant be and is hereby declared executable.
C. The Claimant shall pay Judgment Creditor's and Applicant's costs of suit on an ordinary scale.

DEME J:……

Alex F Associates, Claimant's Legal Practitioners
Chinawa Attorneys, Judgment Creditor's Legal Practitioners